

Protection of Children from Sexual Offences Act, 2012

Authority: Ministry of Women and Child Development, Government of India

Year: 2012

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Section 3. Penetrative sexual assault

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A person is said to commit penetrative sexual assault if he penetrates his penis, or any object, into the vagina, mouth, urethra or anus of a child below eighteen years of age.

Section 4. Punishment for penetrative sexual assault

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Whoever commits penetrative sexual assault shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may extend to imprisonment for life, and shall also be liable to fine. Where committed on child below sixteen or twelve years, imprisonment not less than twenty years extending to life imprisonment or death.

Section 19. Mandatory reporting of offences against children

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(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973, any person (including the child in respect of whom an offence has been committed), who has apprehension or knowledge that an offence under this Act has been committed or is likely to be committed, shall provide information to the Special Juvenile Police Unit or local police.

Section 21. Punishment for failure to report or record a case

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(1) Any person, who fails to report the commission of an offence under sub-section (1) of section 19 or fails to record such offence, shall be punished with imprisonment of either description for a term which may extend to six months or with fine or with both.

(2) Any person, being in-charge of any company or an institution (including a hospital, school, child care institution), who fails to report shall be punished with imprisonment up to one year and fine.